

MTUS Advocacy Project - Copyright Compliance Notice

MTUS Constitutional Analysis Project
Personal Research Initiative
February 2026

MTUS Advocacy Project - Copyright Compliance Notice

IMPORTANT: COPYRIGHT COMPLIANCE ACTIONS TAKEN

Date: February 16, 2026

Purpose: Remove verbatim ACOEM guideline content to avoid copyright infringement

FILES MODIFIED

Original Files Containing Verbatim ACOEM Content (Copyright Risk):

The following files contained extensive verbatim text from ACOEM guidelines and have been replaced with analysis-only versions:

1. ACOEM-Cervical-and-Thoracic-Spine-Guideline.txt Replaced with ANALYSIS version
2. Elbow-Disorders-Guideline.txt Replaced with ANALYSIS version
3. Shoulder-Disorders-Guideline.txt Replaced with ANALYSIS version
4. Hand-Wrist-Forearm-Disorders-Guideline.txt Replaced with ANALYSIS version

Location of Revised Files:

- `/home/d/.openclaw/workspace/mtus-advocacy-site/docs/[Guideline]-ANALYSIS.txt`

Original Files (Safe - Original Analysis):

The following files contain ORIGINAL analysis and legal arguments and have been retained:

1. MTUSCONSTITUTIONALVIOLATIONMASTERREPORT.txt - Original legal analysis
 2. MTUS14THAMENDMENTLEGALARGUMENTS.txt - Original constitutional arguments
 3. MTUSMASTEREXECUTIVESUMMARYALL17GUIDELINES.txt - Original statistical summary
 4. SUPPLEMENTALCASELAW_ANALYSIS.txt - Original legal research
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WHAT WAS REMOVED

Verbatim ACOEM Content Removed:

- Complete guideline text
- Tables of contents (verbatim)
- Recommendation tables (verbatim reproduction)

- Clinical definitions (verbatim)
- Treatment descriptions (verbatim)
- Copyrighted headers and footers
- ACOEM/Reed Group copyright notices

What Was KEPT:

- Original statistics derived from analysis of guidelines
 - Original commentary and interpretation
 - Legal arguments and constitutional analysis
 - Comparative analysis with Medicare/Medicaid
 - Citations to official sources
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OFFICIAL SOURCES FOR COMPLETE GUIDELINES

The full ACOEM guidelines are available from official sources:

ACOEM Official Website:

URL: <https://www.acoem.org/guidelines-resources/library/>

California MTUS Regulations:

URL: https://www.dir.ca.gov/dwc/MTUS/MTUS_Regulations.htm

Copyright Holder:

- Reed Group, Ltd. (for guidelines through 2020)
 - Reed Group, LLC (for guidelines from 2025)
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SUMMARY OF STATISTICAL FINDINGS

Based on independent analysis of the ACOEM guidelines:

Guideline	Total Recs	"% Insufficient Evidence"	"Strongly Recommended"
Cervical/Thoracic Spine	~162	76.5%	~4.9%
Shoulder Disorders	~375+	80.7%	~2.1%
Elbow Disorders	~205	90.1%	~2.4%
Hand/Wrist/Forearm	~370+	66.8%	~3.2%
AVERAGE	~1,296	78.5%	~2.1%

Key Finding:

For every 1 treatment "strongly recommended," approximately 12.6 treatments are denied based on "insufficient evidence."

LEGAL POSITION UNCHANGED

The removal of verbatim ACOEM content does NOT affect the legal arguments or constitutional challenge. The statistical analysis remains valid based on independent review of the guidelines. The constitutional claims are based on:

1. State action by California DWC
 2. Classification between workers' comp and other patients
 3. Unequal treatment - FDA-approved treatments denied to workers
 4. No rational basis for denying treatments covered by Medicare/Medicaid
 5. Due process violations from irrebuttable presumptions
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USAGE GUIDELINES

What You CAN Do:

Cite ACOEM guidelines with proper attribution
Quote brief excerpts under fair use for commentary/criticism
Create original analysis and statistics
Reference specific recommendations by citation
Compare and contrast guidelines with other standards

What You CANNOT Do:

Reproduce complete ACOEM guideline text
Copy extensive tables or sections verbatim
Remove or alter copyright notices
Claim ACOEM content as original work
Distribute full guidelines without permission

FAIR USE CONSIDERATIONS

The revised documents rely on:

1. Original analysis - Independent statistical compilation
2. Factual data - Evidence levels and recommendation categories (facts not copyrightable)

3. Commentary - Critical analysis of guideline methodology
4. Criticism - Constitutional challenge to guideline application

These uses fall within fair use doctrine for research, commentary, and legal advocacy.

DOCUMENT RETENTION

Original Files with Verbatim Content:

The original files containing verbatim ACOEM content have been retained but marked as containing third-party copyrighted material. They should not be published or distributed.

Recommended Action:

- Use the -ANALYSIS.txt versions for all advocacy work
 - Reference official ACOEM sources for complete guideline text
 - Maintain citations to official sources
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CONTACT INFORMATION

For questions about ACOEM guidelines:

- ACOEM: <https://www.acoem.org/>
- Reed Group: <https://www.reedgroup.com/>

For California MTUS:

- CA Division of Workers' Compensation: <https://www.dir.ca.gov/dwc/>
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CONCLUSION

This project maintains its constitutional challenge to the MTUS system while respecting copyright law. The revised analysis documents provide all necessary statistical support for the legal arguments without infringing on ACOEM's copyrighted guideline text.

The constitutional violation claims remain fully supported by independent analysis of the guidelines.

Copyright Compliance Review Completed: February 16, 2026

LEGAL DISCLAIMER

This document contains personal opinions, analysis, and commentary only. Nothing herein constitutes legal advice, factual allegations, or definitive claims about any person, organization, or government entity.

The content is for informational and educational purposes only. Consult a qualified attorney for legal advice specific to your situation.

This research was conducted using AI-assisted tools. While every effort has been made to ensure accuracy, AI systems can make errors. The author welcomes corrections and fact-checking.

All statements regarding ACOEM, MTUS, or other organizations are expressions of opinion and analytical commentary, not statements of objective fact. No false statements of fact are made about any person or organization.

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